



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles Bloom, AICP, Planning and Development Director
Subject: Substitute Resolution
Date: March 7, 2022

Background:

Attached is a substitute resolution with a modified attachment A. The changes incorporated are:

1. A requirement for staff review of the fee schedule every five years (Councilman Johnson request).
2. Removal of the appraisal cost fee from the street/alley vacation by ordinance application.
3. A \$2,500 limit has been established for preliminary and final plat applications.
4. A \$5,200 limit has been established for expedited plat applications. This is the sum of the preliminary and final plat applications plus a \$200 fee for staff prioritization and the convenience of a quicker review.
- 5.

Vacation Appraisal Fee Removed:

After hearing public comments at the February 28th City Council meeting, staff agrees that it could cause undue and unpredictable delays associated with a street/alley vacation application. Additionally, receipt of this fee has not been included in the annual revenue projections since applications occur infrequently. Typically, no more than one application is filed per year, if at all.

Platting Application Fee Caps:

Summarized below are when a platting action would max out on fees (Max Out Scenario) and what an application fee would be for a typical application based on the average number of lots platted in 2021 (Average Lots Platted).

Max Out Scenario				
	Base	Per Lot Fee	Number of Lots	Total Fee
Preliminary Plat	\$ 700.00	\$ 25	72	\$ 2,500.00
Final Plat	\$ 700.00	\$ 15	120	\$ 2,500.00
Expedited Plat	\$ 1,600.00	\$ 40	90	\$ 5,200.00

Average Lots Platted				
	Base	Per Lot Fee	Number of Lots	Total Fee
Preliminary Plat	\$ 700.00	\$ 25	39	\$ 1,675.00
Final Plat	\$ 700.00	\$ 15	81.25	\$ 1,918.75
Expedited Plat	\$ 1,600.00	\$ 40	30.86	\$ 2,834.40

This item is up for final consideration by the Governing Body on March 14, 2022.

Attachments:

1. Substitute Resolution and Attached Fee Schedule

RESOLUTION NO. _____**ENTITLED: "A RESOLUTION ADOPTING A FEE SCHEDULE FOR PLANNING AND DEVELOPMENT PROJECTS."**

WHEREAS, on January 23, 2012, the Governing Body approved Ordinance 3943 creating the Unified Development Code (UDC); and

WHEREAS, on October 25, 1993, the Governing Body, jointly with the County Commissioners, adopted Resolution 3451 creating a schedule of fees related to development and subdivision applications; and

WHEREAS, the costs of conducting business has increased and the established fees do not reflect costs associated with development actions or the services offered by the City; and

WHEREAS, pursuant to UDC Section 1.3.7 the City may charge fees to defray some or all of the cost of processing land development applications; and

WHEREAS, adoption of a fee schedule is necessary to defray the costs associated with processing land development applications; and

WHEREAS, staff has conducted internal research and surveys to measure costs associated with development, including but not limited to, costs associated with staff review time, legal notice, ordinance publication, data storage, development related software, and data storage; and

WHEREAS, staff recognizes that some services of the department are a public service in the interest of the public safety, health and welfare of the Cheyenne community and fees to defray total costs may not be necessary and appropriate and may be nominal to encourage compliance; and

WHEREAS, a fee schedule has been created and is attached to this resolution as Attachment A consisting of one (1) page which is attached hereto and incorporated herein.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, the fee schedule shown in Attachment A of this resolution is hereby adopted and all previous development fees are hereby replaced.

BE IT FURTHER RESOLVED, that this resolution shall become effective March 31, 2022, and shall apply to all applicable applications filed on or after the date.

BE IT FURTHER RESOLVED, that the attached fee schedule shall, at minimum, be reviewed by Planning and Development Department staff every five years hereafter and amendments to the fee schedule shall be brought forward to the Governing Body as necessary.

(THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK)

PRESENTED, READ AND ADOPTED THIS 28TH DAY OF FEBRUARY 2022.

Patrick J. Collins, Mayor

(Seal)
ATTEST:

Kristina F. Jones, City Clerk

APPROVED

By Stefanie Boster at 11:58 am, Mar 04, 2022

Planning and Development Fee Schedule March 31, 2022

Development Applications	Fee
Administrative Adjustments (per request)	\$ 100
Annexations	\$ 1,425
Accessory Dwelling Unit	\$ 600
Administrative Use	\$ 500
Conditional Use	\$ 825
Comprehensive Plan Amendment	\$ 750
Child Care Application	\$ 375
Home Occupation	\$ 50
Preliminary PUD	\$ 1,300
Final PUD	\$ 1,100
Variance	\$ 675
Special Use Permit	\$ 1,500
Temporary Sign Permit	\$ -
Temporary Use	\$ 600
Right-of-way Vacation	\$1,000
Zone Change	\$ 850
Appeal of Admin Dec	\$ 850

Site Plans	Fee
Site Plan Change of Use Documentation with no proposed exterior modifications	\$ 100
Site Plan Modifications affecting less than 25% of an approved plan	\$ 450
Site Plan Modifications affecting 25% or more of an approved plan	\$ 900
Site Plan New	\$ 1,800

Divisions of Land	Fee
Plat - Administrative	\$ 800
Plat - Preliminary	\$ 700
(\$2,500 maximum fee)	+ \$25 per lot
Plat - Final	\$ 700
(\$2,500 maximum fee)	+ \$15 per lot
Plat - Expedited	\$ 1,600
(\$5,200 maximum fee)	+ \$40 per lot

Telecommunication	Fee
Wireless telecommunication facility (Macro cell)	\$ 1,500
Wireless telecommunication facility - modification to existing site (Macro cell)	\$ 500
Small Cell Base Fee (up to 5 batched)	\$ 1,000
Small Cell -Per unit exceeding 5 in batch	Base Fee + \$100 each
Small Cell -New pole review	Base Fee + \$1,000 each

Other Services	Fee
Outside User's Agreement	\$ 600
201 Exceptions	\$ 600
Zoning verification letter - Standard letter	\$ 25
Zoning verification, Non-standard letter	\$ 100
Building Permit Review Fee	\$ 50
Sign Permit Review Fee (per sign)	\$ 10
Pre Application Meetings	\$ -

*An additional \$100 Environmental Health fee is collected by the City and paid to County Environmental Health

Version 3, March 7, 2022